

3	Lopez v. Sunny Delight Beverages Co. 2022-01280502	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$850,000 class action and PAGA settlement. Subject to plaintiff's submission of the revised documents identified below, the court grants the motion as follows: \$7,500.00 for plaintiff's enhancement payment (not to exceed); \$283,333.33.00 for attorneys' fees (not to exceed); \$28,000.00 for litigation costs (not to exceed); \$8,500.00 for settlement administration costs (not to exceed); and \$40,000.00 total PAGA penalties (\$30,00.00 to LWDA). The court has the following questions and comments: 1. What is the significance of the addendum to the settlement agreement now that the second addendum has been signed by the parties and counsel? Are the addendum and the second addendum identical? If so, why is the addendum needed? 2. The references to secondary locations of the documents referred to in the first paragraph of the proposed order should be removed. The citations to those documents should be only to the exhibits attached to the proposed order, not to other copies of the same documents located elsewhere in the court file. 3. The various now-superseded copies of the notice should not be attached to the proposed order as exhibits. The only notice attached to the proposed order should be the operative notice (in English and Spanish). Plaintiff is ordered to file and serve by <u>December 19, 2024</u> a revised proposed order with all exhibits attached. The final approval hearing is scheduled for <u>April 24, 2025 at 2:00 p.m.</u> in Department CX104. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
4	O'Neill v. Robinson Pharma Inc. 2020-01176039	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for

		preliminary approval of a \$3,495,000 class action and PAGA settlement. Subject to the court's ruling on any objections that may be presented at the hearing, the court is inclined to grant the motion as follows: \$10,000.00 for plaintiff's enhancement payment (not to exceed); \$1,165,000.00 for attorneys' fees (not to exceed 1/3 of gross settlement amount); \$30,000.00 for litigation costs (not to exceed); \$20,000.00 for settlement administration costs (not to exceed); and \$800,000.00 total PAGA penalties (\$600,000.00 to LWDA). The final approval hearing is scheduled for <u>May 8, 2025 at 2:00 p.m.</u> in Department CX104. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX104 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
5	Padilla v. Robinson Pharma, Inc. 2021-01183520	<u>Status Conference in <i>Padilla v. Robinson Pharma, Inc.</i>, Case No. 2021-01183520</u> The court has reviewed the parties' joint status conference statement filed December 5, 2024 (ROA 161). Plaintiff states in the status conference statement that she objects to the settlement in <i>O'Neill v. Robinson Pharma, Inc.</i>, Case No. 2020-01176039. Plaintiff asserts the <i>O'Neill</i> settlement is not fair, reasonable or adequate, and that neither she nor her counsel received notice of the settlement or any information about the terms and conditions of the settlement. As to the former, the court will hear from plaintiff regarding her objection at the December 12, 2024 hearing. As to the latter, plaintiff's counsel has received at least three court orders regarding the <i>O'Neill</i> preliminary approval motion. 2/21/24 Order (ROA 150); 7/22/24 Order (ROA 153); 8/19/24 Order (ROA 156). Plaintiff's counsel's claim that counsel was unaware of the settlement of the <i>O'Neill</i> action and its terms is not persuasive. A status conference is scheduled for <u>May 8, 2025 at 2:00 p.m.</u> in Department CX104. Clerk to give notice.
6	Nguyen v. Robinson Pharma, Inc. 2021-01224817	<u>Status Conference in <i>Nguyen v. Robinson Pharma, Inc.</i>, Case No. 2021-01224817</u> The court has reviewed the parties' joint status conference statement filed December 5, 2024 (ROA 77), and based thereon